

IN THE SUPREME COURT OF PAKISTAN
(Advisory Jurisdiction)

PRESENT:

Mr. Justice Iftikhar Muhammad Chaudhry, CJ
Mr. Justice Muhammad Sair Ali
Mr. Justice Ghulam Rabbani

REFERENCE NO. 1 OF 2011

[REFERENCE BY THE PRESIDENT OF THE
ISLAMIC REPUBLIC OF PAKISTAN UNDER
ARTICLE 186 OF THE CONSTITUTION TO
REVISIT THE CASE OF ZULFIQAR ALI
BHUTTO REPORTED AS PLD 1979 SC 38]

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On behalf of President: Dr. Babar Awan
 Minister for Law & Justice
 Government of Pakistan
 Mr. M. Masood Chishti
 Secretary, Ministry of Law & Justice

Date of hearing: 13.04.2011

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ORDER

Dr. Babar Awan has stated that he would appear in this matter. But we have told him that as a lawyer he must be aware that he has to get his licence revived, though we know that there are examples where during the era when there was no constitutional dispensation in the country, Ministers had been appearing before the Courts as lawyers, but now as there is constitutional dispensation and institutions are functioning under

the Constitution, therefore, such exercise should not be repeated. On this, he stated that he has prepared his resignation, which was placed before us for our perusal along with another document whereby he has been authorized by the President to appear in Court. However, resignation has to be tendered to the President, who is the competent authority to accept the same. We appreciate that realizing importance of the case, Dr. Babar Awan, Minister for Law has tendered his resignation and his licence is likely to be revived during the course of the day. In view of the importance of the Reference, we adjourn it to 14.04.2011 at 11.30 a.m.

IFTIKHAR MUHAMMAD CHAUDHRY, CJ

MUHAMMAD SAIR ALI, J

GHULAM RABBANI, J

Islamabad, the
13th April, 2011